

# Kabala Deed No. 2994 — Working Translation

Sale by attorney · Mouza Shamerkona, J.L. No. 102, Moulvibazar Sadar

This is a **working translation and summary** produced from a certified record-room copy (সহি মোহরকৃত নকল) of a handwritten Bengali deed. The original script is difficult to read in places, and several key figures — including the year of the deed — are genuinely ambiguous. Items marked **[?]** are provisional readings. **Nothing in this summary should be relied on for legal purposes without verification against the original and the advice of a qualified advocate.** This document records what the deed states; it does not verify that those statements are correct.

|                         |                                                                                                                                                                                                                               |
|-------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Deed type               | Kabala (registered sale deed), executed by an attorney on behalf of absent principals                                                                                                                                         |
| Deed no.                | 2994 <b>[?]</b>                                                                                                                                                                                                               |
| Year                    | <b>Unresolved — reads as either 2003 or 2006 [?]</b> . The Bengali numerals ৩ and ৬ are formed almost identically in this hand. The day and month read as 24/5; only the year is in doubt. See “Priority verification” below. |
| Registering office      | Moulvibazar Sadar Sub-Registry                                                                                                                                                                                                |
| Executant               | Md. Nurul Islam — signing (a) in his own right, and (b) as আম-মোক্তার (constituted attorney) for three others                                                                                                                 |
| Principals named        | Akram Ali; Ali Akbar; and Md. Ali Azgor, son of Md. Akram Ali                                                                                                                                                                 |
| Power of attorney cited | No. 14(3)1469/03 dated 08.04.2003 — written in Western numerals in the deed and therefore legible with reasonable confidence                                                                                                  |
| Purchasers              | Five brothers of Barshijora, sons of Haji Lana Mia <b>[?]</b> : Khalil Mia (Joynal), Jalil Mia, Manik Mia (Juwel), Mamun Mia (Suwel) and Ashik Mia <b>[?]</b>                                                                 |
| Consideration           | Taka 2,10,000 <b>[?]</b>                                                                                                                                                                                                      |
| Land conveyed           | Approximately 125 shatak (1.25 acres) <b>[?]</b> in Mouza Shamerkona, J.L. 102                                                                                                                                                |

## S.A. → R.S. dag correlation (significant finding)

The schedule sets each সাবেক (S.A.) dag against its হাল (R.S.) dag, and includes a hand-drawn sketch. Readings: S.A. 2245 → R.S. 2888 **[?]**; S.A. 2246 → R.S. 2892 **[?]**; S.A. 2250 → R.S. 2894 **[?]**; S.A. 2251 → R.S. 2893 **[?]**; S.A. 2249 → R.S. 2896/2898 **[?]**. Khatiyani numbers appearing include 2228, 2225, 2229 and S.A. khatiyani 102/59 **[?]**. This is the correlation sought by tracker item a8 and should be checked against the Settlement Office comparative list.

## Chain of title recited in the deed

The deed traces the sellers' own title to earlier purchases: Deeds **2088 and 2089 of 1980** (from Abdul Hekim), Deed **2499 dated 5.3.1983** (from Abdul Matlib) **[?]**, and Deed **4105 [?]** (from Abdul Latif). Note that this differs from the working assumption previously recorded: the deed held on file as “4885/1981” may in fact be 4105 or 2499, and Deed 2089/1980 has not yet been obtained.

## Other contents

The deed includes an affidavit page (শপথপত্র) containing the standard declarations that the property is not vested or abandoned property, is not surplus under the ceiling law, and is free of encumbrance, together with an indemnity clause.

## Priority verification

- Year of the deed:** ask the Sub-Registry which Book-1 volume contains deed no. 2994 — it will appear in one year's index only. The stamp-paper serial block (প 7292315–7292324) provides an independent date bracket.
- The power of attorney itself:** obtain a certified copy of No. 14(3)1469/03 from the Sub-Registry. Its terms determine what authority was conferred and by whom. A power to conduct litigation does not by itself confer a power of sale.
- Any attestation record for that instrument (for principals resident abroad, such deeds are normally attested at the Bangladesh High Commission).
- Mutation and khajna history for the R.S. dags listed above from the deed's date onward.
- Relationship between the dags in this schedule and those in R.S. Khatiyani 22 / Mutation 1224 (2023–24), which appear to overlap.

## Status

**Open matter.** The contents of this deed raise questions that the family has referred for professional legal advice. No conclusion is recorded here.